

Moved by Toews

Seconded by Den Hartog

IN THE SENATE
SENATE AMENDMENT TO S.B. NO. 1352

AMENDMENT TO SECTION 1

On page 1 of the printed bill, in line 13, delete "proposed"; delete lines 14 and 15 and insert: "residential subdivision on at least four (4) acres of land that is designed to provide attainable homeownership opportunities with single-family detached dwellings on smaller lots that are no greater than one thousand five hundred (1,500) square feet per lot, have compact home sizes, and have efficient site design that reduces development costs while maintaining compatibility with surrounding neighborhoods."; in line 16, delete "October 1, 2026" and insert: "February 1, 2027"; in line 19, delete "for all land zoned for single-fam-"; delete lines 20 and 21 and insert: "to allow starter home subdivisions in residential zoning districts, except for lands falling within an area defined as a historic district in section 67-4607, Idaho Code, or designated as a historic property pursuant to section 67-4614, Idaho Code. For starter home subdivisions, a city's comprehensive plan and land use regulations shall be amended to:"; in line 22, delete "four" and insert: "five"; in line 23, delete "(1,400)" and insert: "(1,500)"; in line 24, following "sions" insert: "unless infrastructure limitations, lot configuration, or environmental constraints make it unfeasible"; in line 27, following "lot" insert: ", provided, however, that setbacks along the perimeter of a project may be required to match setbacks of abutting zoning districts"; in line 32, following "it;" insert: "and"; delete lines 33 through 35; and in line 36, delete "(f)" and insert: "(e)".

On page 2, in line 3, following "access," insert: "roadway classifications or conditions, infrastructure capacity constraints,"; in line 10, delete "five thousand (5,000)" and insert: "ten thousand (10,000)"; and following line 10, insert:

"(5) Cities may condition or deny approval of a starter home subdivision where the city determines that existing or planned infrastructure is inadequate to support the subdivision, to the same extent and under the same standards the city applies to other residential subdivisions.

(6) Nothing in this section shall prohibit a city from enacting regulations, standards, or conditions that are less restrictive than the requirements provided in this section."